Mortiles
4600 Lincoln Dr. Suite W-1, Baltimore, MD 21227
Primary Phone: 443-575-6680 Secondary Phone: 410-271-9723 Fax: (443) 524-8032

4/10/2026

ORDER FORM (260415214)

FULL SEARCH

Ordered To			
Name :	HAZELWOOD AND ASSOCIATES LLC		
File Number:	260415214	**Date:**	04/09/2026
Order Type :	FULL SEARCH		
Property Information			
Borrower/Owner:	KENNETH E MITCHELL ESTATE		
Purchaser :	KIMBERLY J COOK AND SABATHION ERIC POPE		
Parcel ID:			
Address :	1712 BRANDY ROAD, CEDAR BLUFF VA 24609 Cedar Bluff 24609		
State:	VIRGINIA	**County :**	TAZEWELL

Requirements

SEARCH MUST COVER A 40 YEAR TIME FRAME. THE SEARCH MAY BE STOPPED EVEN IF THE PROPERTY IS STILL IN THE SAME FAMILY AS LONG AS 40 YEARS HAVE BEEN SEARCHED GRANTED THAT YOU HAVE REPORTED AT LEAST 1 PROPER WARRANTY DEED. WE REQUIRE PROOF VIA DEED COPIES THAT 40 YEARS WAS IN FACT SEARCHED. PROVIDE FULL COPIES OF ALL DEEDS. PLEASE PROVIDE COPIES OF ANY OUT SALES FROM THE ORIGINAL VESTING DEED(S).
****

WE REQUIRE PERTINENT PAGES OF ALL OPEN DEED OF TRUSTS AKA MORTGAGES. PERTINENT PAGES INCLUDE: NEED NAME, AMOUNT, ADDRESS, SIGNATURE, NOTARY SIGNATURE PAGE, LEGAL DESCRIPTION, PUD RIDER PAGES (WHERE APPLICABLE) & RECORDING INFORMATION. WE ALSO REQUIRE COMPLETE COPIES OF ALL ASSOCIATED DOCUMENTS SUCH AS ASSIGNMENTS, SUBORDINATIONS, MODIFICATIONS, UCCS, FINANCING STATEMENTS, POAS & REFINANCE AFFIDAVITS (IF ANY).

NOTE: IF AN ASSUMPTION MORTGAGE IS REFERENCED/MENTIONED WITHIN ANY OF THE DEEDS, WE MUST KNOW IF THE ASSUMPTION MORTGAGE IS OPEN OR RELEASED. IF OPEN/UNRELEASED PLEASE ABSTRACT AND PROVIDE A COPY OF THE MORTGAGE AS NORMAL.

IF RELEASED, PLEASE PROVIDE A COPY OF THE RELEASE/SATISFACTION. IF THE RELEASE/SATISFACTION COPY IS NOT AVAILABLE, THEN PLEASE NOTE THAT AND INSTEAD PROVIDE THE CORRESPONDING RELEASE INFORMATION SUCH AS THE REFERENCE TO THE BOOK & PAGE OR INSTRUMENT NUMBER AND RECORDING DATE OF THE RELEASE OR SATISFACTION.

PLEASE SEARCH FOR UNIFORM COMMERCIAL CODE DOCUMENTS. IF YOU LOCATE A UCC, IT IS IMPERATIVE THAT YOU VERIFY IF YOU CAN RUN A SEARCH QUERY USING THE UCC NUMBER ON THE DOCUMENT. YOU SEARCH BY UCC NUMBER (IF AVAILABLE) BECAUSE SOME RELATED DOCUMENTS (MODIFICATIONS, AMENDMENTS, RELEASES, EXTENSIONS ETC.) ARE NOT INDEXED ON THE DEBTOR'S NAME BUT THEY ARE INDEXED BY THE UCC NUMBER.
****

RUN A JUDGMENTS & LIEN SEARCH ON BUYERS & ALL PARTIES THAT HAVE BEEN IN TITLE WITHIN THE LAST 20 YEARS AND PROVIDE READILY AVAILABLE OPEN JUDGMENTS / LIENS. YOU SHOULD SEARCH BACK AND REPORT ANY OPEN JUDGMENTS AND LIENS (NOT SATISFIED or EXPIRED) FOR A PERIOD OF 20 YEARS FROM THE PRESENT DATE, ALSO REPORT APPLICABLE DIVORCE CASE/DOCKET ON CURRENT OWNER(S). RUN CIRCUIT COURTS WHERE JUDGMENTS AND LIENS MUST BE FILED IN ORDER TO ATTACH TO REAL ESTATE. ALWAYS PROVIDE THE DOCKETS AKA CASE HISTORY WHERE ACTUAL COPIES ARE NOT PROVIDED.

PLEASE PROVIDE COPIES OF ANY & ALL STATE AND FEDERAL TAX LIENS FOUND.

NOTE: IT IS EXTREMELY IMPORTANT THAT YOU PROVIDE A LIST OF NAMES (AND ANY VARIATIONS OF THOSE NAMES) WHO WERE RAN FOR JUDGMENTS AND LIENS.
****

IF ANY OF THE CURRENT OWNER(S) ARE DECEASED OR IF THE PROPERTY'S INTEREST OR TITLE HAS BEEN CONVEYED VIA AN ESTATE OR PERSONAL REPRESENTATIVE DEED, THEN WE REQUIRE PERTINENT PAGES FROM THE ESTATE. SUCH AS THE DOCKET aka CASE HISTORY, LAST WILL & TESTAMENT, LIST OF HEIRS, NOTICES TO CREDITORS, APPOINTMENT OF PERSONAL REPRESENTATIVE, INVENTORY, PROOF OF PAYMENT FOR ESTATE TAXES (IN APPLICABLE STATES), ANY/ALL CLAIMS AGAINST THE ESTATE & ANY OTHER PERTINENT DOCUMENTATION DIRECTLY RELATED TO THE SUBJECT PROPERTY.

IF ESTATE OCCURS FURTHER BACK IN THE CHAIN OF TITLE, THEN PROVIDE THE DOCKET INFORMATION. NO NEED TO PULL ACTUAL ESTATE COPIES ON PRIOR OWNERS, THE DOCKET INFORMATION FROM THE ESTATE WILL SUFFICE.
****

PROVIDE DETAILED PROPERTY TAXES WITH PAID AMOUNT AND THE PAID DATES. IF TAXES ARE STILL DUE, THEN WE NEED THE DUE AMOUNT WITH DUE DATES. REPORT ANY AND ALL DELINQUENCIES AND PAST DUE AMOUNTS. ALSO LIST THE PARCEL ID ON THE PROPERTY.
****

WE REQUIRE A PLAT COPY ON ALL SEARCHES. IF A PLAT IS UNAVAILABLE, PLEASE PROVIDE THE REASON WHY THE PLAT IS NOT READILY AVAILABLE AND PROVIDE WHATEVER ELSE IS AVAILABLE SUCH AS A TAX MAP OR GIS MAP.
****

WE NEED PERTINENT COPIES OF C&R DOCUMENTS (TABLE OF CONTENTS, FIRST 5-10 PAGES AND THE PORTION OF DECLARATIONS WHICH DEALS WITH ASSESSMENTS, FRONT FOOT BENEFIT AND COMMON PROPERTY) , ROW, EASEMENTS, ETAL... THAT ARE FOUND WITHIN THE SCOPE / TIMEFRAME OF THE SEARCH.

Note: IF THE PERTINENT PAGE COUNT IS MORE THAN 50-60 PAGES THEN ONLY PROVIDE THE FIRST 5 PAGES AND RECORDING PAGE. WE WILL GET BACK TO YOU IF WE REQUIRE THE COMPLETE DOCUMENT.
****

IF THE PROPERTY IS PART OF A PUD (PLANNED URBAN DEVELOPMENT) OR HOA (HOME OWNERS ASSOCIATION) PLEASE PROVIDE THE RELEVANT PUD & HOA INFORMATION. IF THE PROPERTY IS NOT PART OF A HUD OR HOA, PLEASE BE SURE TO MAKE A NOTE THAT NONE WAS FOUND.
****

NOTE: DO NOT PROCEED WITH THE SEARCH WITHOUT FIRST PROVIDING A DETAILED EXPLANATION & TAKING APPROVAL IF THE PROPERTY IS:
a] NOT LOCATED IN THE COUNTY LISTED
b] ZONED COMMERCIAL
c] A MOBILE HOME ON LEASED LAND (MEANING THEY DO NOT OWN THE LAND).
d) IF THE PROVIDED BORROWER IS NOT FOUND ON THE TITLE FOR THE PROVIDED PROPERTY ADDRESS, PLEASE REVERT TO US FOR THE CONFIRMATION BEFORE PROCESSING THE SEARCH.

Search By :	1-3 Business Days. Please notify us asap if TAT will exceed.

(Include Invoices with Completed Searches, Fax or Email to title@mortiles.com)

Mortiles
4600 Lincoln Dr. Suite W-1, Baltimore, MD 21227
Primary Phone: 443-575-6680 Secondary Phone: 410-271-9723 Fax: (443) 524-8032

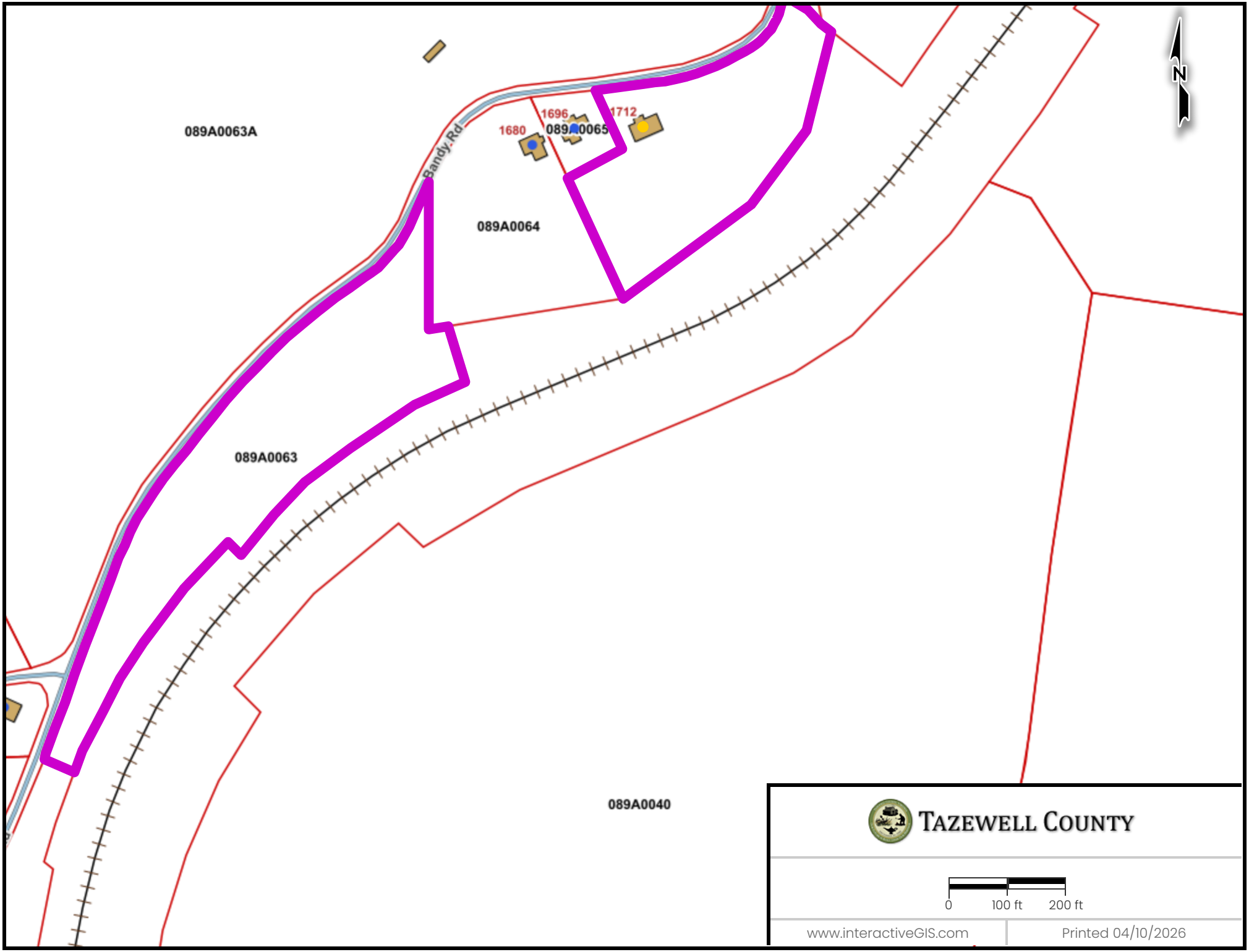
ABSTRACTOR CHECKLIST (260415214)

BELOW ARE REQUIRMENTS WHICH ARE OFTEN NOT MET OR NOT CLEARLY CONVEYED. PLEASE TAKE A FEW MOMENTS TO COMPLETE AND RETURN THE FORM WITH YOUR SEARCH RESULTS. KINDLY USE ADDITIONAL INFORMATION/NOTES SECTION TO CONVEY ANY RELEVANT INFORMATION. THANK YOU IN ADVACE FOR YOUR COOPERATION IN PROVIDING THIS INFORMATION.

*PLEASE BE SURE TO INCLUDE ALL PERTINENT PAGES FROM MORTGAGE AS LISTED ON THE REQUEST FORM. INCLUDING THE ADDRESS PAGE AND NOTARY SIGNATURE PAGE.

	SEARCH REQUIRMENTS	Found	None Found	Not Run
1	Is the property subject to/part of a Homeowner's Association? If yes, please provide the name of the HOA. **HOA Name:** _____ **HOA RecordingInfo: Book/Page:** _____ **Rec.Date:** _____	[ ]	[ ]	[ ]
2	Did any of the Deeds reference an Assumption Mortgage? If so, please provide the corresponding release/satisfaction information such as Book/Page, Instrument # and Recording Date. **Book/Page:** _____ **Instrument#:** _____ **Rec.Date:** _____	[ ]	[ ]	[ ]
3	We require a copy of the Plat. If you did not provide a copy of the plat, please provide an explanation as to why it was not provided. **Comments:**	[ ]	[ ]	[ ]
4	Please check the current owners for any possible Estates/Probate filed. Kindly let us know if any Estates were found by checking Found or None Found. **Estate Name:** _____ **Book/Page/EstateNo:** _____ **DOD:** _____ **Is the Estate Still Open or has it been Closed? Yes/No** **Please provide a copy of the Estate docket.**	[ ]	[ ]	[ ]
5	Please provide a list of all names ran for Judgments and Liens below.	[ ]	[ ]	[ ]
6	Are there different Effective Dates aka Good Through Dates for the various departments you searched in the County? If yes, please provide the effective date for each department. **Land Records effective date is** 4/10/2026 **Judgment & Lien index effective date is** 4/10/2026 **Please circle the respective Court: [Circuit, District, Supreme, Municipal, Prothnotary, Other] Effective Date is** _____ .	[ ]	[ ]	[ ]

NOTES/ADDITIONAL INFORMATION FROM ABSTRACTOR:


089A0063A
Bandy Rd
1680
1696
089A0065
1712
089A0064
089A0063
089A0040
N
TAZEWELL COUNTY
0
100 ft
200 ft
www.interactiveGIS.com
Printed 04/10/2026

Tax Map #: 089A0063
As of: 4/9/2026 10:11:33 PM

Account #: 15615

Tazewell County Report

Property Owner

Name:	MITCHELL, KENNETH E. & LOUELLA G.
Mailing Address:	C/O CHARLOTTE DIANE MITCHELL BOONE 1928 ALMA COURT MADISONVILLE, KY 42431-9505
Parcel Use:	SINGLE FAMILY SUBURB - RES
Tax District:	03 - MAIDEN SPRINGS

Property Information

Physical Address:	1712 BANDY RD
Tax Map #	089A0063
Size (Acres):	2.23
Legal Description:	2.23 ACRES +- INDIAN CREEK

Current Assessment

Year	Land	Improvements	Land Use Value	Total
2026	$13,100	$49,500	$0	$62,600

Land

Land Type	Size	Unit Price	Assessed
H/S-C100 (10000)	1.00	10,000.00	10,000.00
RESIDUAL	1.23	2,500.00	3,075.00
Total	**2.23**		**13,075**

Deed Transfers

Deed Date	Instrument Year	Book	Page	Deed Type	Est. Sale	Owner	# of Parcels in Sale
1/7/2026	2026	010	N/A	WB	N/A	BOONE, CHARLOTTE DIANA MITCHELL	1
1/7/2026	2026	009	N/A	WB	N/A	MITCHELL, KENNETH E.	1
9/8/1997	0	737	839	N/A	$11,700	MITCHELL, KENNETH E. & LOUELLA G.	1

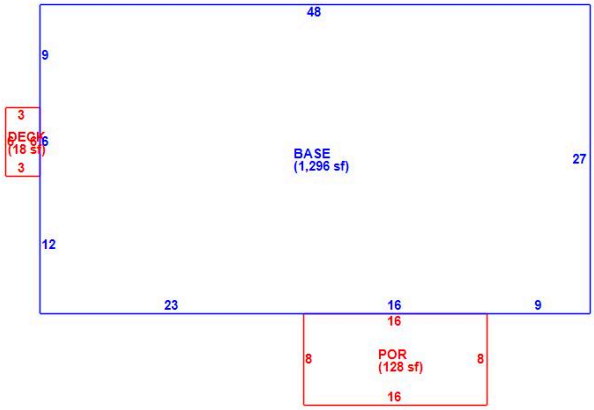
Residential Card 1 Details

Occupancy	Story	Style	Total Liv	Grade	Year Built
MH	1.0	Double Wide	1,296	D	1997

Model:	RESIDENTIAL	**Interior Wall:**	DRYWALL
Rooms:	**Beds:** 3 **Total:** 7	**Exterior Wall:**	VINYL
Bathrooms:	**Full:** 2 **Half:** 0	**Foundation:**	PIERS
Floor Cover:	CARPET		
Roof Cover:	METAL	**Heat/Cool:**	CENTRAL
Roof Type:	GABLE	**Central AC:**	100%
Basement:	NONE	**Basement Area:**	0

Residential Card 1 Photo

Residential Card 1 Sketch



Building Sub-Areas (sq ft)

Code	Description	Gross Area	Living Area
BASE	FIRST FLOOR	1,296	1,296
DECK	DECK	18	0
POR	PORCH	128	0
Totals	**1,442**	**1,296**	

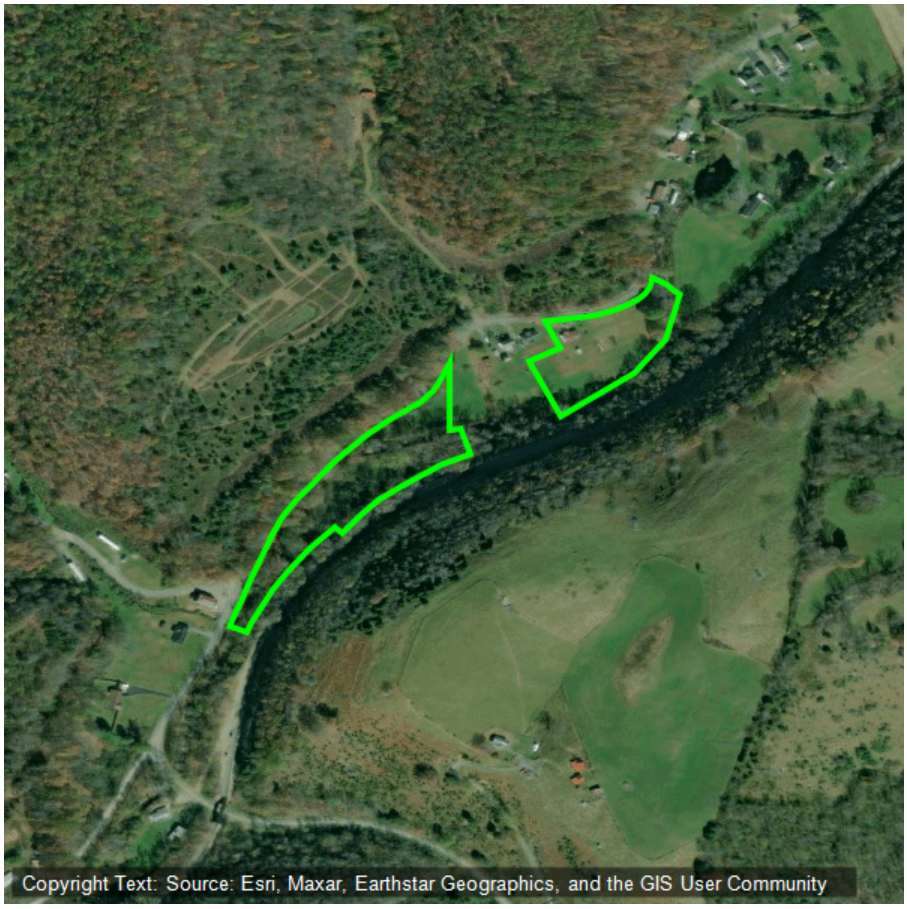
Outbuildings and Other Improvements

Code	Description	Sub Code-Description	Size	Assessed Value	Grade
BLDG	BUILDING	Frame	64.00 UN	$0	C
BLDG	BUILDING	Metal	120.00 UN	$500	C

Assessment History

Year	Land	Improvements	Land Use Value	Total
2025	$13,100	$49,500	$0	$62,600
2024	$13,100	$49,500	$0	$62,600
2023	$5,200	$45,900	$0	$51,100
2022	$5,200	$45,900	$0	$51,100
2021	$5,200	$45,900	$0	$51,100
2020	$5,200	$45,900	$0	$51,100
2019	$5,200	$45,900	$0	$51,100
2018	$5,200	$45,900	$0	$51,100
2017	$5,200	$46,200	$0	$51,400
2016	$6,000	$46,200	$0	$52,200
2015	$6,000	$46,200	$0	$52,200
2014	$6,000	$46,200	$0	$52,200
2013	$6,000	$46,200	$0	$52,200
2012	$6,000	$46,200	$0	$52,200
2011	$10,000	$51,400	$0	$61,400
2010	$5,300	$43,200	$0	$48,500
2009	$10,000	$51,400	$0	$61,400
2008	$5,300	$43,200	$0	$48,500
2007	$10,000	$51,400	$0	$61,400
2006	$5,300	$43,200	$0	$48,500
2005	$23,000	$43,200	$0	$66,200
2004	$23,000	$43,200	$0	$66,200
2003	$23,000	$43,200	$0	$66,200
2002	$23,000	$43,200	$0	$66,200
2001	$23,000	$43,200	$0	$66,200
2000	$23,000	$43,200	$0	$66,200

Map



Not a Legal Document

Subject to terms and conditions
www.actDataScout.com

Date: 4/10/26 Cash Register: 001 DAVID T LARIMER TREASURER 09:58:26
Cshr: KRISTIN HURLEY Account#: 000015615 Cust.Transactions:
Type: PAY Dept/Bill#: RE2025 00185770001 P/I Date: 4/10/2026 4/10/2026
Name: MITCHELL, KENNETH E. & LOUELLA G. Bill Date: 4/01/2025 Half: 1
Nam2: Due/PstDt: 6/05/2025
Addr: 1712 BANDY RD PAdr: 1712 BANDY RD

CEDAR BLUFF VA
Zip: 24609 - 8482 Map#: 089 A 0063
Desc: 2.23 ACRES +-
INDIAN CREEK Acre: 2.230 Dist/Cls 03 / 01 Status
MrtgCo:
SSN: 000 - 00 - 0000 000 - 00 - 0000

Land: $13,100 Improve: $49,500 Use: $0
Original Bill: $181.54 Credits: $181.54 Discount: $.00
Penalty Paid: $.00 Int Paid: $.00 Last Date: 5/09/2025
Amount Owed: $.00 Other: $.00 Setoff Claim#: 000000000
Total Owed: $.00 Penalty: $.00 Interest: $.00
Principal Due: Pen Rate % Int Fact
Penalty Due: Interest Due:
Total Amount Due: Aging:

F1=Amt Tender F2=Next Ticket F3=Exit F10=Funct Menu F20=Attach

Date: 4/10/26 Cash Register: 001 DAVID T LARIMER TREASURER 09:58:48
Cshr: KRISTIN HURLEY Account#: 000015615 Cust.Transactions:
Type: PAY Dept/Bill#: RE2025 00185770002 P/I Date: 4/10/2026 4/10/2026
Name: MITCHELL, KENNETH E. & LOUELLA G. Bill Date: 4/01/2025 Half: 2
Nam2: Due/PstDt: 12/05/2025
Addr: 1712 BANDY RD PAdr: 1712 BANDY RD

CEDAR BLUFF VA
Zip: 24609 - 8482 Map#: 089 A 0063
Desc: 2.23 ACRES +-
INDIAN CREEK Acre: 2.230 Dist/Cls 03 / 02 Status
MrtgCo:
SSN: 000 - 00 - 0000 000 - 00 - 0000

Land: $13,100 Improve: $49,500 Use: $0
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Principal Due: Pen Rate % Int Fact
Penalty Due: Interest Due:
Total Amount Due: Aging:

F1=Amt Tender F2=Next Ticket F3=Exit F10=Funct Menu F20=Attach

REAL ESTATE AFFIDAVIT **Court File No:CWF2026010**

COMMONWEALTH OF VIRGINIA VA. CODE § 64.2-510

Tazewell County Circuit Court

KENNETH EUGENE MITCHELL **January 1, 2026**

NAME OF DECEDENT DATE OF DEATH

Charlotte Diana Mitchell Boone, 1928 Alma Court, Madisonville, Kentucky 42431

NAME AND ADDRESS OF SUBSCRIBER

X I have an interest as HEIR-AT-LAW in the real property of the decedent; AND/OR

☐ I qualified in as: the personal representative of the above-named decedent, who died intestate as to the real estate described herein, and who, at the time of death, was seized of real property in this jurisdiction, briefly described as

The name and last known address of decedent's heirs are:

NAMES OF HEIRS	ADDRESSES	RELATIONSHIP/AGE
Charlotte Diana Mitchell Boone	Madisonville, Kentucky	Daughter / 66

CHARLOTTE DIANA MITCHELL BOONE, SUBSCRIBER

State of **VIRGINIA**; City/County of **TAZEWELL**:

Subscribed and sworn to before me by **CHARLOTTE DIANA MITCHELL BOONE** this 7th **day of January, 2026.**

MASTER DEPUTY CLERK

My commission expires: DECEMBER 31, 2031

VIRGINIA: In the Clerk's Office of the County of Tazewell Circuit Court this 7th **day of January, 2026,** the foregoing AFFIDAVIT was filed and admitted to record.

Teste: CHARITY D. HURST, CLERK

by: , Master Deputy Clerk

SEE ATTACHED FOR REAL ESTATE

FORM CC-1612 MASTER 10/12

REAL ESTATE OF
KENNETH EUGENE MITCHELL

VIRGINIA REAL ESTATE:

TAZEWELL COUNTY:

Mitchell, Kenneth E. & Louella G.
Tax Map #: **089A0063**
Account #: 15615
"2.23 Acres +- Indian Creek"
Maiden Springs Magisterial District
Deed Book 737, Page 839
$62,600
(Sole Ownership...Real Estate Affidavit of Louella Grace Lockhart Mitchell filed prior to this filing)

Mitchell, Kenneth E. & Louella G.
Tax Map #: **089A0065**
Account #: 13531
"Tract, Indian Creek Near Bandy"
Maiden Springs Magisterial District
Deed Book 1096, Page 556
$26,400
(Sole Ownership...Real Estate Affidavit of Louella Grace Lockhart Mitchell filed prior to this filing)

ACKNOWLEDGED BY
SUBSCRIBER/PROPONENT/FIDUCIARY:

_____

REAL ESTATE AFFIDAVIT **Court File No:CWF2026009**

COMMONWEALTH OF VIRGINIA VA. CODE § 64.2-510

Tazewell County Circuit Court

LOUELLA GRACE LOCKHART MITCHELL **October 11, 2019**

NAME OF DECEDENT DATE OF DEATH

Charlotte Diana Mitchell Boone, 1928 Alma Court, Madisonville, Kentucky 42431

NAME AND ADDRESS OF SUBSCRIBER

X I have an interest as HEIR-AT-LAW of Kenneth Eugene Mitchell in the real property of the decedent; AND/OR

☐ I qualified in as: the personal representative of the above-named decedent, who died intestate as to the real estate described herein, and who, at the time of death, was seized of real property in this jurisdiction, briefly described as

The name and last known address of decedent's heirs are:

NAMES OF HEIRS	ADDRESSES	RELATIONSHIP/AGE*
Kenneth Eugene Mitchell	Cedar Bluff, Virginia	Husband / 80
Charlotte Diana Mitchell Boone	Madisonville, Kentucky	Step-Daughter / 60

Ages as of October 2019

CHARLOTTE DIANA MITCHELL BOONE, SUBSCRIBER

State of **VIRGINIA**; City/County of **TAZEWELL**:

Subscribed and sworn to before me by **CHARLOTTE DIANA MITCHELL BOONE** this **7th day of January, 2026.**

MASTER DEPUTY CLERK

My commission expires: DECEMBER 31, 2031

VIRGINIA: In the Clerk's Office of the County of Tazewell Circuit Court this **7th day of January, 2026,** the foregoing AFFIDAVIT was filed and admitted to record.

Teste: CHARITY D. HURST, CLERK

by: _____, Master Deputy Clerk

SEE ATTACHED FOR REAL ESTATE

FORM CC-1612 MASTER 10/12

REAL ESTATE OF
LOUELLA GRACE LOCKHART MITCHELL

VIRGINIA REAL ESTATE:

TAZEWELL COUNTY:

Mitchell, Kenneth E. & Louella G.
Tax Map #: **089A0063**
Account #: 15615
"2.23 Acres +- Indian Creek"
Maiden Springs Magisterial District
Deed Book 737, Page 839
$62,600
(Right-of-Survivorship)

Mitchell, Kenneth E. & Louella G.
Tax Map #: **089A0065**
Account #: 13531
"Tract, Indian Creek Near Bandy"
Maiden Springs Magisterial District
Deed Book 1096, Page 556
$26,400
(Right-of-Survivorship)

ACKNOWLEDGED BY
SUBSCRIBER/PROPONENT/FIDUCIARY:

_____

#3564

BK0737PG0839

This Instrument Prepared By:
Frederick W. Harman
Attorney-At-Law
Tazewell, VA 24651-0523

This DEED OF CORRECTION, made this 16th day of September, 1997, by and between **KENNETH G. MITCHELL and LOUELLA G. MITCHELL**, husband and wife, parties of the first part, and **KENNETH E. MITCHELL and LOUELLA G. MITCHELL**, husband and wife, parties of the second part;

W I T N E S S E T H:

Whereas, the parties of the first part acquired the hereinafter described real estate from Frederick W. Harman, Special Commissioner, by deed dated January 5, 1997, which deed is of record in the Clerk's Office of the Circuit Court of Tazewell County, Virginia in Deed Book 725, at page 635; and,

Whereas, in the aforesaid instrument the subject property is conveyed in part to "Kenneth G. Mitchell" when in reality the correct name of that party is "Kenneth E. Mitchell" and it is the desire of the parties to correct this misnomer for record purposes;

Now, therefore, in order to correct the name of the rightful owners of the property hereinafter described, the parties of the first part do hereby grant and convey unto themselves as the parties of the second part with covenants of General Warranty of title and freedom from encumbrances and as tenants by the entirety with the right of survivorship as at common law all of the real estate which was owned by J. Charles Henkle and Eva Henkle, jointly or separately, at the time of their respective

deaths, or to which they were entitled, situate on the waters of Indian Creek in Tazewell County, Virginia near the mouth of Laurel and on the Highway leading from "Busthead" to Bandy, including the following two tracts or parcels of land, namely:

FIRST TRACT: A tract containing about 41.34 acres, net, being the said original tract containing about forty-five acres, together with the road right of way thereunto belonging, which was assigned and conveyed to said J. Charles Henkle by W. J. Henkle and wife and R. A. Henkle and wife by partition deed dated May 30, 1908, of record in the Clerk's Office of the Circuit Court of Tazewell County, Virginia in Deed Book 64, at page 378, in a partition of the Milton Henkle lands, subject to the exception of the 1.66 acres thereof which was conveyed by said J. Charles Henkle and wife to the Norfolk & Western Railway Company by deed dated February 10, 1910, of record in said Clerk's office in Deed Book 67, at page 580, and subject to the further exception of the easement and right of way which was granted and conveyed by J. Charles Henkle to the Appalachian Electric Power Company be deed dated July 27, 1937, of record in said Clerk's office in Deed Book 132, at page 295, and subject to the further exception of the tract of land containing two (2) acres which was conveyed by said J. Charles Henkle, widower, to said Grace Henkle (now Grace Henkle Tabor) by deed dated March 6, 1939, of record in said Clerk's office in Deed Book 139, at page 33.

SECOND TRACT: All that certain tract or parcel of land containing about three (3) acres situate on the waters of Indian Creek in Tazewell County, Virginia near the mouth of Laurel on

the Highway between "Busthead" and Bandy, and being the same tract of land which was conveyed to said Eva Henkle and J. Charles Henkle, her husband, by R. A. Henkle and wife by deed dated October 23, 1922, of record in said Clerk's office in Deed Book 94, at page 577.

Witness the following signatures as of the day, month, and year first written above.

Kenneth G. Mitchell
Kenneth G. Mitchell

Louella G. Mitchell
Louella G. Mitchell

Commonwealth of Virginia,

County of Tazewell, to-wit:

The foregoing Deed Of Correction has been acknowledged, subscribed, and sworn to before me by Kenneth G. Mitchell (the same person as Kenneth E. Mitchell) and Louella G. Mitchell this 6th day of September, 1997.

My commission expires 8-31-2000.

Notary Public

INSTRUMENT #970386
RECORDED IN THE CLERK'S OFFICE OF
TAZEWELL COUNTY ON
SEPTEMBER 8, 1997 AT 11:44AM
JAMES E. BLEVINS, CLERK
BY: _____ DEPUTY CLERK

#95

This Instrument Prepared By:
Frederick W. Harman
Attorney-At-Law
201 Main Street
Tazewell, VA 24651-0523
(540) 988-5547

This DEED, made this 7th day of January, 1997, by and between **FREDERICK W. HARMAN, Special Commissioner**, party of the first part, and **KENNETH G. MITCHELL and LOUELLA G. MITCHELL**, husband and wife, parties of the second part;

W I T N E S S E T H:

Whereas, Robert C. Spence is the owner of a life estate in the hereinafter described property pursuant to a determination made by the Circuit Court of Tazewell County, Virginia as more fully set forth in that certain Final Decree entered on February 27, 1987 in the case of Juanita Tabor Lockhart, Executrix, etc. v. Robert C. Spence, et als, Chancery File 8899; and,

Whereas, at the time of entry of the aforesaid Final Decree the owners of the remainder interests in the property were determined to be Juanita Tabor Lockhart, Georgia Tabor Madelle, Jesse Tabor, and Troy Tabor; and,

Whereas, Jesse Tabor, now deceased, purported to relinquish all of his right, title, and interest in such property to Georgia Tabor Madelle but no binding determination has been made as to the legal effect of such action and his sole legatee under his Last Will And Testament is his wife, Alma Tabor; and,

Whereas, the Circuit Court of Tazewell County has appointed the party of the first part as Special Commissioner for the purpose of conveying all of the rights, title, and interest of

all of the aforesaid parties in the subject property to Louella G. Mitchell, the female party of the second part, as more fully set forth in Decree No. 1 entered on December 23, 1996 in the case of Juanita Lockhart, Guardian, etc. v. Robert C. Spence, et als, Chancery File 96-000365, who has requested that such conveyance be made to the parties of the second part as set forth hereinafter;

Now, therefore, for and in consideration of the sum of Eleven Thousand Seven Hundred and no/100 Dollars ($11,700.00) cash paid by the party part unto the party of the first part, the receipt and sufficiency of which is acknowledged, the party of the first part does hereby grant, bargain, sell, and convey with covenants of Special Warranty of title unto the parties of the second part as tenants by the entirety with the right of survivorship as at common law all of the real estate which was owned by J. Charles Henkle and Eva Henkle, jointly or separately, at the time of their respective deaths, or to which they were entitled, situate on the waters of Indian Creek in Tazewell County, Virginia, near the mouth of Laurel and on the Highway leading from "Busthead" to Bandy, including the following two tracts or parcels of land, namely:

FIRST TRACT: A tract containing about 41.34 acres, net, being the said original tract containing about forty-five acres, together with the road right of way thereunto belonging, which was assigned and conveyed to said J. Charles Henkle by W. J. Henkle and wife and R. A. Henkle and wife by partition deed dated May 30, 1908, of record in the Clerk's Office of the Circuit

Court of Tazewell County, Virginia in Deed Book 64, at page 378, in a partition of the Milton Henkle lands, subject to the exception of the 1.66 acres thereof which was conveyed by said J. Charles Henkle and wife to the Norfolk & Western Railway Company by deed dated February 10, 1910, of record in said Clerk's office in Deed Book 67, at page 580, and subject to the further exception of the easement and right of way which was granted and conveyed by J. Charles Henkle to the Appalachian Electric Power Company by deed dated July 27, 1937, of record in said Clerk's office in Deed Book 132, at page 295, and subject to the further exception of the tract of land containing two (2) acres which was conveyed by said J. Charles Henkle, widower, to said Grace Henkle (now Grace Henkle Tabor) by deed dated March 6, 1939, of record in said Clerk's office in Deed Book 139, at page 33.

SECOND TRACT: All that certain tract or parcel of land containing about three (3) acres situate on the waters of Indian Creek in Tazewell County, Virginia near the mouth of Laurel on the Highway between "Busthead" and Bandy, and being the same tract of land which was conveyed to said Eva Henkle and J. Charles Henkle, her husband, by R. A. Henkle and wife by deed dated October 23, 1992, of record in said Clerk's office in Deed Book 94, at page 577.

The property hereby conveyed is the same real estate acquired by Grace Henkle Tabor and William H. Tabor, her husband, from Robert A. Henkle and Virginia Henkle, his wife, by deed dated November 26, 1994, which deed is of record in the aforesaid Clerk's office in Deed Book 160, at page 524. Reference is here

made to that instrument as well as the court file in the case of Juanita Lockhart, Guardian, etc. v. Robert C. Spence, et als, Chancery File 96-000365, for a more detailed explanation of the chain of title to the property hereby conveyed.

Witness the following signature as of the day, month, and year first written above.

Frederick W. Harman
Special Commissioner

Commonwealth of Virginia,

County of Tazewell, to-wit:

The foregoing Deed has been acknowledged, subscribed, and sworn to before me by Frederick W. Harman, Special Commissioner, this 9th day of January, 1997.

My commission expires 7/31/98.

Notary Public

INSTRUMENT #9700095
RECORDED IN THE CLERK'S OFFICE OF
TAZEWELL COUNTY ON
JANUARY 9, 1997 AT 11:43AM
$12.00 GRANTOR TAX WAS PAID AS
REQUIRED BY SEC 58.1-802 OF THE VA. CODE
STATE: $6.00 LOCAL: $6.00
JAMES E. BLEVINS, CLERK
BY: DEPUTY CLERK

#195 Last Will and Testament

I, GRACE TABOR of Route 1, Box 303, Cedar Bluff, Tazewell County, Virginia, being of sound mind and disposing memory, do hereby make, declare, constitute and publish this to be my last will and testament, hereby revoking all former wills and codicils heretofore made by me.

I

I direct that all of my just debts and funeral expenses be paid as soon as practical after my death.

II

I hereby name, nominate and constitute my step-daughter, Juanita Lockhart, to be the Executrix of this my last will and testament, and I further name, nominate and constitute the said Juanita Lockhart to be the guardian of the person and property of my son, Robert C. Spence, and I direct that the Executrix and guardian be not required to post surety for the faithful performance of her duties.

III

I hereby devise and bequeath all of the property which I may die seized and possessed of, real, personal and mixed of any nature whatsoever, to my son, Robert C. Spence.

IV

In the event that my son, Robert C. Spence, predeceases me, I devise and bequeath to my step-daughter, Juanita Lockhart, my homeplace and 2 acre lot, together with contents therein, and at my son's death, the said Juanita Lockhart is to have in fee simple, the said homeplace and 2 acre lot, together with contents therein, and I direct that the rest and residue of my remaining property to my step-children share and share alike. For purposes of distribution

of my estate, my son is Robert C. Spence, and my step-children are Juanita Tabor Lockhart, Georgia Tabor Maddelle, Jesse Tabor and Troy Tabor.

V

I expressly give and grant to my Executrix, and to the guardian of the person and property of my son, Robert C. Spence, the power to do as she deems best with my real property, no matter where located, and with all other assets which I may die seized and possessed of, including the power to sell the real estate, at public or private sale, for cash or credit, or partly for cash and partly for credit, to make mortgages upon the real estate, distribute the proceeds from my assets or from the sale of my assets or from the sale of my real estate, in a manner which she deems best for the care and keeping of my son, Robert C. Spence, without the necessity of having to make an accounting to anyone, in the absence of fraud, for the expenditure so made, my intention being that she handle my estate as fully and completely and without reservations, as I would or could, were I living. I direct that no guardian herein named shall be required to furnish bond or other surety in any jurisdiction where she may be called upon to act.

IN WITNESS WHEREOF, I have hereunto set my hand and seal to this, my Last Will and Testament, written without any interlineations, this 23rd day of November, 1980.

Grace Tabor (SEAL)

Signed, sealed, published and declared by the Testator, Grace Tabor, as and for her Last Will and Testament, in the presence of us, all being present at the same time, who at her request, in her presence and in the presence of each other, have hereunto sub-

scribed our names as attesting witnesses
this 23rd day of November, 1980.

W R Broadwell residing at Cedar Bluff Va
Phyllis N. Kinder residing at Cedar Bluff Va.

STATE OF VIRGINIA
AT LARGE

Before me, the undersigned authority, on this day personally appeared Grace Tabor and W.R. BROADWELL and Phyllis N. KINDER, witnesses, known to me to be the Testator and the witnesses respectively, whose names are signed to the attached or foregoing instrument, and all of these persons being by me first duly sworn, Grace Tabor, the Testator declared to me and to the witnesses in my presence, that the said instrument is her Last Will and Testament, and that she had willingly signed or directed another to sign the same for her and executed it in the presence of said witnesses as her free and voluntary act for the purpose therein expressed; that said witnesses stated before me that the foregoing Will was executed and acknowledged by the Testator as her Last Will and Testament in the presence of said witnesses, who in her presence and at her request, and in the presence of each other, did subscribe their names thereto, as attesting witnesses on the day of the date of said Will, and that the Testator at the time of the execution of said Will was over the age of eighteen years and of sound and disposing mind and memory.

Grace Tabor
TESTATOR

W R Broadwell
WITNESS

Phyllis N. Kinder
WITNESS

Subscribed, sworn and acknowledged before me by Grace Tabor, the Testator, and subscribed and sworn before me by W.R. Broadwell and Phyllis N. Kinder, witnesses, this 23rd day of November, 1980, A. D.

Gene Broadwell
NOTARY PUBLIC

My commission expires April 27, 1984.

BOOK 31 PAGE 512

VIRGINIA: In the Clerk's Office of the Circuit Court of the County of Tazewell

ESTATE OF LETTIE GRACE TABOR

I, the undersigned who this day appeared before the Clerk of the Circuit Court of Tazewell County, Virginia, as Executrix of the Estate of Lettie Grace Tabor deceased, late of the County of Tazewell, Virginia, on her oath do say that I have made diligent inquiry, and that I verily believe the following to be a true and correct list, together with the ages and addresses of Heirs of Lettie Grace Tabor deceased, who died Testate on August 21, 19 81.

LIST OF HEIRS

NAME:	AGE:	RELATIONSHIP:	ADDRESS:
Robert Clarence Spence	54	Son	Rt. 1, Box 303 Cedar Bluff, Va.

Given under my hand, this 26 day of August 19 81.

Juanita Lockhart
Named Executrix

Subscribed and sworn to before me, this 26 day of August 19 81.

RHEA E. MOORE, JR., Clerk
By _____
Deputy Clerk

LOCATION AND DESCRIPTION OF VIRGINIA REAL ESTATE OWNED BY DECEDENT:

Maiden Spring District - Indian Creek 44.30 acres

Maiden Spring District - Indian Creek 2.00 acres

VIRGINIA: In the Clerk's Office of the Circuit Court of the County of Tazewell, the 26th day of August, 1981.

IN RE: PROBATE OF LAST WILL & TESTAMENT OF LETTIE GRACE TABOR, DECEASED.

A writing dated the 23rd day of November, 1980, purporting to be the Last Will & Testament of Lettie Grace Tabor, was this day presented in the Clerk's Office of the Circuit Court of Tazewell County, Virginia, by Juanita Lockhart, the named Executrix, and offered for probate.

It appearing from the evidence introduced that the said Lettie Grace Tabor died on the 21st day of August, 1981; that at the time of her death, the said Lettie Grace Tabor had a known place of residence in Tazewell County, Virginia, and owned real and personal property therein.

From an examination of said writing, it appeared that the same had been executed pursuant to the provisions of Section 64.1-87.1 of the Code of Virginia, as amended; it is therefore ordered that the same be admitted to probate, and further ordered to be recorded as and for the Last Will & Testament of Lettie Grace Tabor, deceased.

Thereupon, Juanita Lockhart, the named Executrix, moved that she be allowed to qualify as such, which motion was granted, and the said Juanita Lockhart is hereby appointed as Executrix under the Last Will & Testament of Lettie Grace Tabor, deceased.

Whereupon, Juanita Lockhart qualified as such Executrix by taking and subscribing the oath prescribed by the Constitution of the Commonwealth, and further by entering into bond in the penalty of Forty-five thousand ($45,000.00) Dollars, without surety, the said testatrix having requested in her will that no security be required of her.

Upon motion of the personal representative, the following persons are appointed as appraisers: Pauline Carbaugh; W.S. Pugh, Jr., T.O. Eads, Lowell G. Compton, and Eugene Hearl, any three of whom may act, who shall after first being duly sworn, appraise all of the assets over which the fiduciary has supervision and control, as shall be produced before them, and make return thereof as required by law.

Given under my hand, this 26th day of August, 1981.

Clerk

The parties of the first part are not to be liable for any expense incident to the construction and maintenance of the line fences aroung the land herein conveyed.

The consideration of $500.00 above mentioned is paid and to be paid as follows: One hundred dollars ($100.00) thereof is cash in hand paid by the parties of the second part to the parties of the first part, receipt of which is acknowledged, and the balance of said consideration is evidenced by two notes for two hundred dollars ($200.00) each, bearing even date herewith, executed by the parties of the first part, payable to the parties of the second part on or before six and twelve months, respectively, from date, with interest from date at the rate of six percent per annum until paid.

The parties of the first part hereby retain a vendor's lien on the property herein conveyed to secure the payment of the balance of purchase money, evidenced by said two notes.

The parties of the first part each warrants generally its one-half undivided interest in the real estate herein conveyed, and that the same is free from encumbrances.

IN TESTIMONY WHEREOF, said Coal Mountain Mining Company has caused its name to be signed hereto by Chas. P. Gillespie, its President, and its corporate seal to be hereunto affixed, attested by W. T. Gillespie, its Secretary; and Coal Creek Coal Company has caused its name to be signed hereto by James W. Harman, its President and its corporate seal to be hereunto affixed, attested by M. R. Harman, its Secretary.

COAL MOUNTAIN MINING COMPANY 1
INCORPORATED 1890. 1

COAL MOUNTAIN MINING COMPANY,
By Chas. P. Gillespie, President.

Attest: W. T. Gillespie,
Secretary.

COAL CREEK COAL COMPANY 1
INCORPORATED 1900. 1

COAL CREEK COAL COMPANY,
By James W. Harman, President.

Attest: M. R. Harman,
Secretary.

State of Virginia, County of Tazewell, to-wit:

I, Ollie Gillespie, a Notary Public for Tazewell County, in the State of Virginia, do hereby certify that Chas. P. Gillespie, President, and W. T. Gillespie, Secretary, of Coal Mountain Mining Company, and James W. Harman, President, and M. R. Harman, Secretary of Coal Creek Coal Company, whose names are signed to the foregoing and hereto annexed deed, bearing date on the 27th day of October, 1941, have each acknowledged the same before me in my County aforesaid.

My commission will expire June 3, 1944.

Given under my hand this the 10th day of November, 1941.

Ollie Gillespie, Notary Public
for Tazewell County, Virginia.

VIRGINIA: In the Clerk's Office of Tazewell Circuit Court Jan. 9, 1945

This Deed, with 55 cents in Federal Revenue Stamps thereon duly cancelled, as required by law, was presented, and upon the annexed Certificate of acknowledgment, admitted to record, at 9:45 A. M.

Teste: Maude G. Hurst, Deputy Clerk.

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THIS DEED, made this the 26th day of December, 1944, by and between Robert A. Henkle and Virginia Henkle, his wife, parties of the first part, and Grace Henkle Tabor and William H. Tabor, her husband, parties of the second part;

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W I T N E S S E T H:

THAT, WHEREAS, Milton Henkle died intestate several years ago seized and possessed

of certain real estate situate on the waters of Indian Creek in Tazewell County, Virginia, and was survived by six children, his sole heirs at law, including, J. Charles Henkle; and

WHEREAS, afterwards S. M. Henkle, one of the children and heirs at law of Milton Henkle, deceased, and Dora Henkle, his wife, granted and conveyed to the said J. Charles Henkle their one-sixth undivided interest in the said Milton Henkle estate by deed dated January 30, 1908, of record in the Clerk's Office of the Circuit Court of Tazewell County, Virginia, in Deed Book No. 64, page 377; and

WHEREAS, W. J. Henkle, R. A. Henkle and J. Charles Henkle became the owners of the lands of Milton Henkle, deceased, and by paritition deed dated May 30, 1908, of record in said Clerk's Office in Deed Book No. 64, page 378, said W. J. Henkle and wife and R. A. Henkle and wife, allotted, granted and conveyed unto said J. Charles Henkle as his portion of the landed estate of Milton Henkle, deceased, a certain tract or parcel of land containing about forty-five (45) acres, together with a certain road right of way therein mentioned; and

WHEREAS, said J. Charles Henkle and wife, afterwards, granted and conveyed unto the Norfolk & Western Railway Company a strip or portion of said land containing 1.66 acres by deed dated February 10, 1910, of record in said Clerk's Office in Deed Book No. 67, page 580; and

WHEREAS, afterwards said J. Charles Henkle, widower, granted and conveyed unto Appalachian Electric Power Company a right of way or easement over said tract of land by deed dated July 27, 1937, of record in said Clerk's Office in Deed Book No. 132, page 295; and

WHEREAS, afterwards said J. Charles Henkle granted and conveyed unto his daughter, Grace Henkle, (now Grace Henkle Tabor), a tract of two acres of said land, together with the buildings and improvements thereon, by deed dated March 6, 1939, of record in said Clerk's Office in Deed Book No. 139, page 33; and

WHEREAS, there remained out of said original tract of about forty-five (45) acres 41.34 acres owned by the said J. Charles Henkle; and

WHEREAS, by deed dated October 23, 1922, of record in said Clerk's Office in Deed Book No. 94, page 577, R. A. Henkle and wife granted unto Eva Henkle and J. Charles Henkle, her husband, a certain tract or parcel of land containing about three (3) acres lying on the waters of Indian Creek in Tazewell County, Virginia, near the mouth of Laurel and adjoining said tract of land owned by the said J. Charles Henkle; and

WHEREAS, said Eva Henkle died about twenty years ago intestate and was survived by the said J. Charles Henkle, her husband, and said Grace Henkle, now Grace Henkle Tabor, and said Robert A. Henkle and Clarence M. Henkle, her only children and sole heirs at law; and

WHEREAS, said Clarence M. Henkle afterwards, about the year 1927, died unmarried and intestate over twenty-one years of age and was survived by his said father, the said J. Charles Henkle, and his sister, the said Grace Henkle, now Grace Henkle Tabor, and his brother, Robert A. Henkle; and

WHEREAS, the said J. Charles Henkle died intestate about the year 1939, and was survived by the said Grace Henkle Tabor and said Robert A. Henkle, his children and sole heirs at law; and

WHEREAS, said Grace Henkle Tabor and the said Robert A. Henkle are now the owners of the real estate which was owned by their said father and mother, to-wit, said J. Charles Henkle and said Eva Henkle at the time of their respective deaths; and

WHEREAS, the said Robert A. Henkle and wife have sold to the said Grace Henkle Tabor and William H. Tabor, her husband, all of their right, title and interest in the real estate which was owned by the said J. Charles Henkle and said Eva Henkle at the time of their respective deaths, situate on the waters of Indian Creek in Tazewell County, Virginia:

NOW, THEREFORE, in consideration of the sum of Nine Hundred Dollars ($900.00) cash in hand paid by the parties of the second part to the parties of the first part, receipt of which is acknowledged, the said Robert A. Henkle and Virginia Henkle, his wife, hereby sell, grant and convey unto the said Grace Henkle Tabor and William H. Tabor, her husband, all of their one-half (1/2) undivided interest, (together with any other interest they may have), in and to all of the real estate which was owned by said J. Charles Henkle and Eva Henkle, jointly or separately, at the time of their respective deaths, or to which they were entitled, situate on the waters of Indian Creek in Tazewell County, Virginia, near the mouth of Laurel and on the Highway leading from "Busthead" to Bandy, including the following two tracts or parcels of land, namely:

FIRST TRACT; A tract containing about 41.34 acres, net, being the said original tract containing about forty-five acres, together with the road right of way thereunto belonging, which was assigned and conveyed to said J. Charles Henkle by W. J. Henkle and wife and R. A. Henkle and wife by said partition deed dated May 30, 1908, of record in said Clerk's Office in Deed Book No. 64, page 378, in a partition of the Milton Henkle lands, subject to the exception of the 1.66 acres thereof which was conveyed by said J. Charles Henkle and wife to the Norfolk & Western Railway Company by deed dated February 10, 1910, of record in said Clerk's Office in Deed Book No. 67, page 580, and subject to the further exception of the easement and right of way which was granted and conveyed by J. Charles Henkle to the Appalachian Electric Power Company by deed dated July 27, 1937, of record in said Clerk's Office in Deed Book No. 132, page 295, and subject to the further exception of the tract of land containing two (2) acres which was conveyed by said J. Charles Henkle, widower, to said Grace Henkle (now Grace Henkle Tabor), by deed dated March 6, 1939, of record in said Clerk's Office in Deed Book No. 139, page 33.

SECOND TRACT: All that certain tract or parcel of land containing about three (3) acres, situate on the waters of Indian Creek in Tazewell County, Virginia, near the mouth of Laurel on the Highway between "Busthead" and Bandy, and being the same tract of land which was conveyed to said Eva Henkle and J. Charles Henkle, her husband, by R. A. Henkle and wife by deed dated October 23, 1922, of record in said Clerk's Office in Deed Book No. 94, page 577.

The two tracts of land in which the parties of the first part herein convey to the parties of the second part, all of their undivided interest, constitute the home farm of said J. Charles Henkle and Eva Henkle, his wife.

Reference is here made to each and all of the deeds above mentioned for a more particular description of the real estate herein conveyed.

The parties of the first part covenant to and with the parties of the second part that they will warrant generally their said undivided interest in said two tracts of real estate herein conveyed and that the same is free from encumbrances.

WITNESS the following signatures and seals.

Robert A Henkle (SEAL)

Virginia Henkle (SEAL)

527

State of Virginia,

County of Tazewell, to-wit:

I, Tivis D. Owens, a Notary Public for the County of Tazewell, in the State of Virginia, do hereby certify that Robert A. Henkle and Virginia Henkle, his wife, whose names are signed to the foregoing and hereto annexed deed bearing date the 26th day of December, 1944, have acknowledged the same before me in my County aforesaid.

My commission will expire June 23, 1946.

Given under my hand this the 6th day of January, 1945.

Tivis D. Owens
Notary Public as aforesaid.

VIRGINIA: In the Clerk's Office of Tazewell Circuit Court Jan. 9, 1945

This Deed, with 110 cents in Federal Revenue Stamps thereon duly cancelled, as required by law, was presented, and upon the annexed Certificate of acknowledgment, admitted to record, at 10:30 A. M.

Teste: Maude G. Hurt, Deputy Clerk.

45

Ex-Marie J. P. Holmes Jonesville Va 1-13-1945 Hurt

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THIS DEED made and entered into this the 9th day of January, 1945, by and between Sallie Asbury (widow), party of the first part, and J. P. Holmes and Mattie L. Holmes, his wife, parties of the second part;

W I T N E S S E T H :

That for and in consideration of the sum of TWENTY-FIVE HUNDRED DOLLARS ($2500.00), FIFTEEN HUNDRED DOLLARS ($1500.00) of which is cash in hand paid to the said Sallie Asbury, the receipt of which is hereby acknowledged, and the balance to be paid in two equal installments, and evidenced by two negotiable notes, executed by the said J. P. Holmes and Mattie L. Holmes, his wife, payable to the order of the said Sallie Asbury, in the amount of FIVE HUNDRED DOLLARS ($500.00) each, due and payable on or before one (1) and two (2) years after date, and bearing even date herewith, the said Sallie Asbury doth hereby grant and convey unto the said parties of the second part, with covenants of GENERAL WARRANTY of title, and freedom from any and all encumbrances, the following two tracts of land, lying contigious on the south side of Clinch Mountain in Poor Valley, Tazewell County, Virginia, together with a right of way from the said lands to the public road as hereinafter described:

The debt secured by the deed here recorded has been paid and the lien of said deed is hereby released. Given under my hand this 1st day of December 1946. Sallie Asbury Teste: H. Palmer Kiser, Clerk

The obligations evidencing the debt described in the deed above released was produced before me duly cancelled. 3/4/46 Teste: [illegible] Deputy Clerk.

FIRST TRACT: All that certain tract or parcel of land, containing 100 acres, which was conveyed to the said Sallie Asbury by Roy C. Asbury (unmarried) by deed dated the 9th day of April, 1921, and of record in the Clerk's Office of Tazewell County, Virginia, in D. B. 90, page 376, said land being conveyed to the said Roy C. Asbury by Thomas B. Asbury by deed dated the 2nd day of May, 1912, and recorded in said Clerk's Office in D. B. 72, page 200, the said Thomas B. Asbury who reserved a life estate in said land having died the 14th day of December, 1927, the said Sallie Asbury is now seized of said land in fee simple.

SECOND TRACT: All that certain tract or parcel of land which was conveyed to the said Sallie Asbury by T. B. Asbury, her husband, being the same person as the aforementioned Thomas B. Asbury, by deed dated the 9th day of June, 1923, and recorded in said Clerk's Office in D. B. 96, page 81, lying on the south side of Clinch Mountain in Poor Valley, Tazewell County, Virginia, (number of acres unknown) North of the 100 acre tract.

Together with a right of way, by gateway, 15 feet in width, to the public road, which was granted and conveyed by T. May Martin and Isaac Martin to the said T. B. Asbury by deed dated the 13th day of January, 1917, and which right of way is appurtenant to said lands, which is recorded in said Clerk's Office in D. B. 84, page 62.

ABSTRACT OF JUDGMENT
Commonwealth of Virginia VA. CODE § 8.01-449

Case No. GV07002542-00

TAZEWELL GENERAL DISTRICT COURT - CIVIL
DISTRICT COURT NAME AND ADDRESS

JLD 52 PG 390
FILED: 2/19/08 10:08AM
389

TRU POINT BANK v. COOK, KIMBERLY RENEE
FULL NAME OF PLAINTIFF (LAST, FIRST, MIDDLE) — FULL NAME OF DEFENDANT (LAST, FIRST, MIDDLE)

ADDRESS

ADDRESS
PO BOX 55
SECO, KY 41849

CITY STATE ZIP

CITY STATE ZIP
0000

DATE OF BIRTH — SSN (LAST FOUR DIGITS ONLY)

DATE OF BIRTH — SSN (LAST FOUR DIGITS ONLY)
0000

FULL NAME OF PLAINTIFF(S)

COOK, EMIL A.; III
FULL NAME OF DEFENDANT(S)

ADDRESS

ADDRESS

CITY STATE ZIP

CITY STATE ZIP
0000

DATE OF BIRTH — SSN (LAST FOUR DIGITS ONLY)

DATE OF BIRTH — SSN (LAST FOUR DIGITS ONLY)

This is to certify that a judgment was rendered in this court in favor of:

[x] PLAINTIFF(S) against DEFENDANT(S)
[ ] DEFENDANT(S) against PLAINTIFF(S)
[ ] ..... v. .....

DATE OF JUDGMENT	01/14/2008
$ 4,684.97	AMOUNT OF JUDGMENT
$	AMOUNT OF JUDGMENT NOT SUBJECT TO ACCRUAL OF INTEREST
HOMESTEAD EXEMPTION WAIVED [ ] YES [ ] NO [ ] CANNOT BE DEMANDED	
$	ALTERNATE VALUE OF SPECIFIC PROPERTY AWARDED
INTEREST RATE(S) AND BEGINNING DATE(S) 8.95 % FROM 04-10-06	

COSTS	ATTORNEY'S FEES	ATTORNEY
$ 92.00	$ 1061.74	BOLLING & HEARL

OTHER:

I certify the above to be a true abstract of a judgment rendered in this court.

01/14/2008
DATE

[ ] CLERK [ ] JUDGE

FORM DC-465 MASTER 7/07

CL-01674-24

WARRANT IN DEBT (CIVIL CLAIM FOR MONEY) Commonwealth of Virginia
VA. CODE §§ 16.1-79

COUNTY OF TAZEWELL 336730 General District Court
CITY OR COUNTY

Main Street -- P.O. Box 566, Tazewell, VA
STREET ADDRESS OF COURT

TO ANY AUTHORIZED OFFICER: You are commanded to summon the Defendent(s).
TO THE DEFENDENT(S): You are summoned to appear before this Court at the above address on
03/27/06 at 9:00 AM
RETURN DATE AND TIME to answer the Plaintiff(s)' civil claim (see below)

2-6-06
DATE ISSUED

Cindy Meade
☐ CLERK ☐ DEPUTY CLERK ☐ MAGISTRATE

CLAIM: Plaintiffs claim that Defendent(s) owe Plaintiff(s) a debt in the sum of
$ 1,859.50 net of any credits, with interest at % from 07/03/05 until paid.
INTEREST RATE DATE FROM WHICH IS DUE
$ 38.00 costs and $ attorney's fees with the basis of this claim being
COSTS ATTY. FEE

☐ Open Account ☐ Contract ☐ Note ☒ Other (EXPLAIN) unjust enrichment + breach of contract
Damages due from Defendant(s) ~~negligence~~, plus interest from 07/03/05 to the date hereof and 6% thereafter
HOMESTEAD EXEMPTION WAIVED? ☐ Yes ☐ No ☐ cannot be demanded

February 1, 2006
John L. Bagwell
☐ PLAINTIFF ☒ PLAINTIFF'S ATTORNEY ☐ PLAINTIFF'S EMPLOYEE/AGENT

CASE DISPOSITION

☒ JUDGMENT against ☒ named Defendent(s) ☐
for $ 1,859.50 net of any credits, with interest at 6 % from date of 7/3/05 until paid, $ 38.00 costs and $ — attorney's fees

HOMESTEAD EXEMPTION WAIVED? ☐ YES ☒ NO ☐ CANNOT BE DEMANDED

☐ JUDGMENT FOR ☐ NAMED DEFENDENT(S) ☐
☐ NON-SUIT ☐ DISMISSED

Defendent(s) Present? ☐ YES ☒ NO

3/27/06
(DATE) JUDGE COURT

FORM DC-412X (FRONT) REVISED 7/2004 (114:3-005 05/04)

CASE NO. V06000363

PLAINTIFF(S) (LAST NAME, FIRST NAME, MIDDLE INITIAL)

Erie Insurance Group-non auto loss claim

V.

DEFENDANT(S) (LAST NAME, FIRST NAME, MIDDLE INITIAL)

Kimberly Dawn Cook
126 Brown Bottom Lane P.O. Box 1565
Cedar Bluff, VA 24609

OFF Middle Creek Rd.

JLD 57 PG 272
FILED 4/17/06 10:22am
768

WARRANT IN DEBT

* * *

TO DEFENDANT: You are not required to appear; however, if you fail to appear, judgment may be entered against you. See the additional notice on the reverse about requesting a change of trial location.

☐ To dispute this claim, you must appear on the return date to try this case.

☑ To dispute this claim, you must appear on the return date for the judge to set another date for trial.

Bill of Particulars ORDERED DUE

Grounds of Defense ORDERED DUE

ATTORNEY FOR PLAINTIFF(S)
John L. Bagwell, P.C.
P.O. Box 823, Grundy, VA 24614

ATTORNEY FOR DEFENDANT(S)

HEARING DATE AND TIME

JUDGMENT PAID OR SATISFIED PURSUANT TO ATTACHED NOTICE OF SATISFACTION.
DATE
CLERK

DISABILITY ACCOMMODATIONS for loss of hearing, vision, mobility, etc. Contact the court ahead of time.

RECEIVED 2-6-06 @ 9:40 AM CSC

Tax Map Identification No.: 089 A 0064 and a Portion of 089 A 0063
Bar No.: 17631

THIS DEED, made and entered into this the 25th day of February, 2016, by and between **LOU ELLA MITCHELL**, ***Individually and as Executrix of the Estate of Juanita Lockhart***, and **KENNETH E. MITCHELL**, ***Her Husband***, **CHARLENE COLE**, and **CASSANDRA FAULCONER**, Grantors, and **JAMES HERRON ALSTON** and **RANDI KRISTINE ALSTON**, husband and wife, ***as Tenants by the Entirety***, Grantees, whose address is 1680 Bandy Road, Cedar Bluff, Virginia 24609;

WITNESSETH:

For and in Consideration of the sum of Thirty-Nine Thousand and No/00 dollars ($39,000.00), the receipt and sufficiency of all of which is hereby acknowledged, the said **LOU ELLA MITCHELL**, ***Individually and as Executrix of the Estate of Juanita Lockhart***, and **KENNETH E. MITCHELL**, ***Her Husband***, **CHARLENE COLE**, and **CASSANDRA FAULCONER**, Grantors, do hereby bargain, sell, grant and convey, ***with covenants of General Warranty of Title and Freedom from Encumbrances***, unto the said **JAMES HERRON ALSTON** and **RANDI KRISTINE ALSTON**, husband and wife, ***as Tenants by the Entirety with Full and Complete Rights of Survivorship as at Common Law***, Grantees, all that certain lot, piece or parcel of real estate, said to contain 2.00 acres, lying on Indian Creek, which is more particularly shown, designated and described on that certain plat titled "**PLAT SHOWING SURVEY FOR JAMES & RANDI ALSTON BEING 2.00 AC. PORTION OF THE**

PLAT BOOK 51 PAGE 92

This instrument prepared by **Gillespie, Hart, Altizer & Whitesell, P.C.**

LOU ELLA MITCHELL PROPERTY NEAR BANDY, TAZEWELL CO., VIRGINIA, DATE: 10-22-15, SCALE: 1" = 50'", dated September 8, 2014, prepared by James D. Ribble, Jr., Land Surveyor, which Plat is attached herein and is to be recorded herewith, reference to which Plat is made for a metes and bounds description of the real estate hereby conveyed.

The real estate conveyed herein is a portions of the real estate acquired by the following three (3) deeds:

1. Real estate acquired by Juanita Lockhart, late of Tazewell County, who departed this life testate and by her Last Will and Testament dated November 30, 1996, and found of record in said Clerk's Office in Will Book 2014, at Page 3166, wherein she directed the Executrix of her Estate, Lou Ella Mitchell, to sell the real estate heretofore described and to divide the proceeds of the sale between her three (3) daughters, who are some of the Grantors herein; and

2. Real estate Kenneth E. Mitchell and Louella G. Mitchell acquired by Deed from Frederick W. Harman, Special Commissioner, dated January 5, 1997, and is found of record in said Clerk's Office in Deed Book 725, at Page 635. The Deed was supplemented by by Deed of Correction dated September 6, 1997, found of record in said Clerk's Office Deed Book 737, at Page 839.

This instrument prepared by **Gillespie, Hart, Altizer & Whitesell, P.C.**

The above referenced conveyance is expressly subject to and beneficiary of any and all easements, restrictions, and reservations contained in duly recorded deeds, plats, and other instruments

constituting constructive notice in the chain of title, which have not expired by a time limitation contained therein or have otherwise become ineffective, and to matters visible upon inspection.

WITNESS the following signatures and seals.

JESSICA L. CARVER NOTARY PUBLIC REG. 7331201 COMMONWEALTH OF VIRGINIA

_____(SEAL)
LOU ELLA MITCHELL,
as Executrix of the Estate of Juanita Lockhart

STATE OF VIRGINIA,
COUNTY OF TAZEWELL, to-wit:

The foregoing deed was acknowledged before me on this the 29 day of February, 2016, by **LOU ELLA MITCHELL,** ***as Executrix of the Estate of Juanita Lockhart,*** herein referred to as a Grantor.

My Registration Number: 7331201
My Commission expires: April 30, 2018

_____
Notary Public

JESSICA L. CARVER NOTARY PUBLIC REG. 7331201 COMMONWEALTH OF VIRGINIA

_____(SEAL)
LOU ELLA MITCHELL, ***Individually***

STATE OF VIRGINIA,
COUNTY OF TAZEWELL, to-wit:

The foregoing deed was acknowledged before me on this the 29 day of February, 2016, by **LOU ELLA MITCHELL,** ***Individually,*** herein referred to as a Grantor.

My Registration Number: 7331201
My Commission expires: April 30, 2018

_____
Notary Public

This instrument prepared by
Gillespie, Hart, Altizer & Whitesell, P.C.

Kenneth E. Mitchell (SEAL)
KENNETH E. MITCHELL

STATE OF VIRGINIA,
COUNTY OF TAZEWELL, to-wit:

The foregoing deed was acknowledged before me on this the 29 day of February, 2016, by **KENNETH E. MITCHELL,** herein referred to as a Grantor.

My Registration Number: 7331201

My Commission expires: April 30, 2018

Jessica Carver
Notary Public

Charlene Cole (SEAL)
CHARLENE COLE

STATE OF VIRGINIA,
COUNTY OF TAZEWELL, to-wit:

The foregoing deed was acknowledged before me on this the 29 day of February, 2016, by **CHARLENE COLE,** herein referred to as a Grantor.

My Registration Number: 7331201

My Commission expires: April 30, 2018

Jessica Carver
Notary Public

This instrument prepared by
Gillespie, Hart, Altizer & Whitesell, P.C.

Cassandra Faulconer (SEAL)
CASSANDRA FAULCONER

STATE OF VIRGINIA,
COUNTY OF TAZEWELL, to-wit:

The foregoing deed was acknowledged before me on this the 29 day of February, 2016, by **CASSANDRA FAULCONER,** herein referred to as a Grantor.

My Registration Number: 7331201
My Commission expires: April 30, 2018

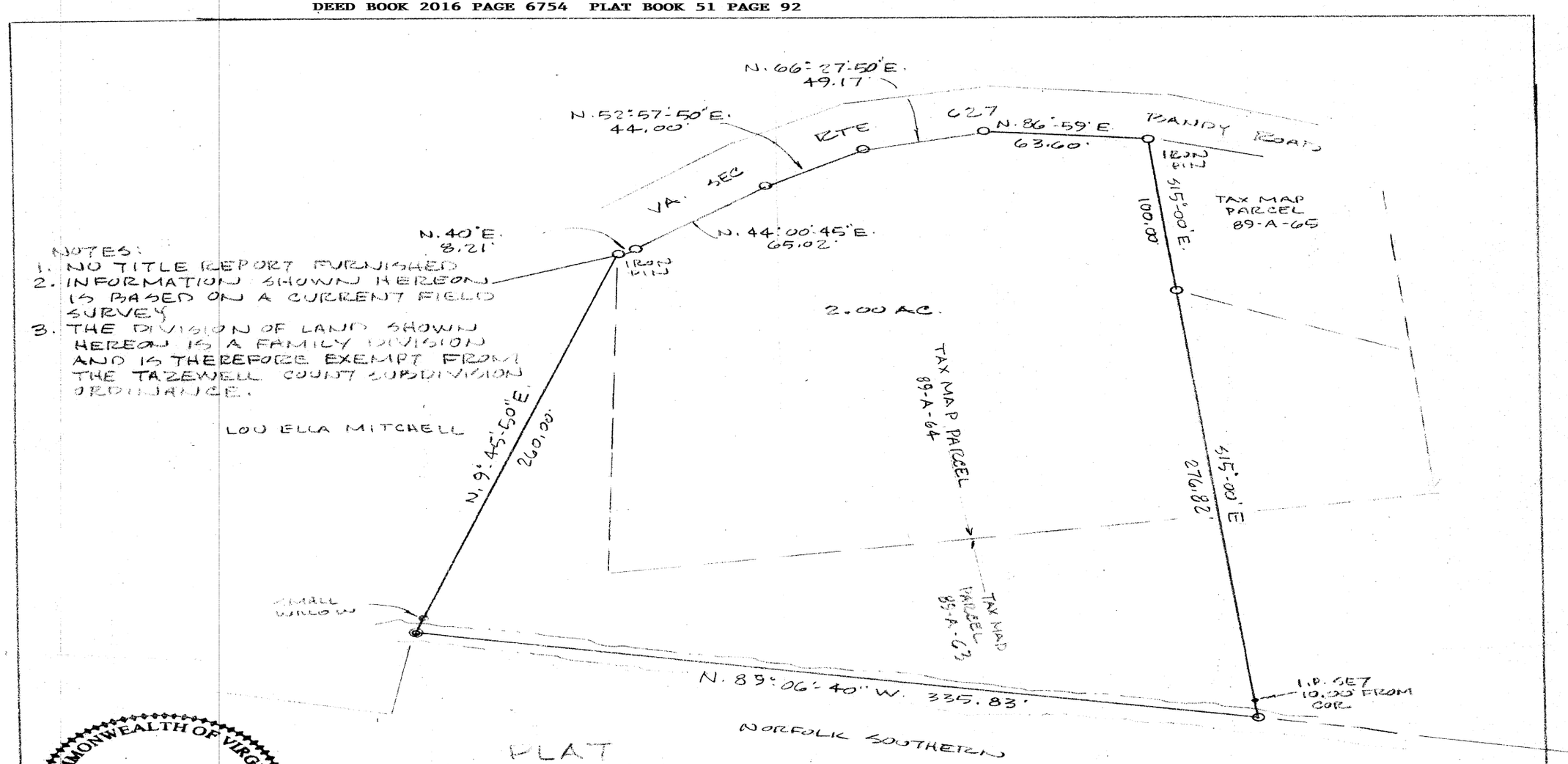
Jessica Carver
Notary Public

JESSICA L. CARVER NOTARY PUBLIC REG #7331201 COMMONWEALTH OF VIRGINIA

INSTRUMENT #160001238
RECORDED IN THE CLERK'S OFFICE OF
TAZEWELL COUNTY ON
MAY 3, 2016 AT 03:58PM
$49.00 GRANTOR TAX WAS PAID AS
REQUIRED BY SEC 58.1-802 OF THE VA. CODE
STATE: $24.50 LOCAL: $24.50
TAMMY B. ALLISON, CLERK
RECORDED BY: MLT

This instrument prepared by
Gillespie, Hart, Altizer & Whitesell, P.C.

THIS DEED WAS PREPARED WITHOUT BENEFIT OF A TITLE EXAMINATION.



NOTES:
1. NO TITLE REPORT FURNISHED
2. INFORMATION SHOWN HEREON IS BASED ON A CURRENT FIELD SURVEY
3. THE DIVISION OF LAND SHOWN HEREON IS A FAMILY DIVISION AND IS THEREFORE EXEMPT FROM THE TAZEWELL COUNTY SUBDIVISION ORDINANCE.

LOU ELLA MITCHELL

COMMONWEALTH OF VIRGINIA
JAMES D. RIBBLE, JR.
No. 1488
LAND SURVEYOR

PLAT
SHOWING SURVEY FOR
JAMES & RANDI ALSTON
BEING 2.00 AC. PORTION OF THE
LOU ELLA MITCHELL PROPERTY
NEAR RANDY
TAZEWELL CO. VIRGINIA
DATE: 10-22-15 SCALE: 1" = 50'
ALPHA LAND SURVEYORS
TAZEWELL VIRGINIA

TAZEWELL COUNTY ENGINEERING DEPT.
106 EAST MAIN STREET
TAZEWELL, VIRGINIA 24651

05/03/2016

BK0738PG1035

GTE SOUTH INCORPORATED EASEMENT W.O. #6550 3PO61UM #4253

This Easement, between Kenneth Mitchell Lowella Mitchell (hereinafter referred to as the Grantor) being the owner or having an interest in land situated in the District of Maiden Spring, County of Tazewell, Commonwealth of Virginia, located as follows: RT 627 Bandy

and GTE South Incorporated, its successors and assigns, and its or their lessees or licensees (hereinafter collectively referred to as the Grantee), provides that for and in consideration of the sum of $1.00 paid by the Grantee, the Grantor hereby grants and releases unto the Grantee the right, privilege and authority to construct, reconstruct, extend, operate, inspect, maintain and, at its pleasure, remove its communications system, consisting of such pole, buried cable and other appurtenances as the Grantee, its successors, assigns, lessees or agents may from time to time require under, on, over, in, through and across the said land as follows: 10' Telephone easement together with the right to trim, cut, and remove trees and brush to the extent necessary to clear said wires, cables, buried cables and poles by at least 4 feet.

Grantee shall have the right to sell, assign, or lease portions of its communication system to other parties and, in that event, such other parties shall, with the Grantee, have the right, in like manner and to like extent as above, to operate their electrical power or other utility system under, on, through, over and across said property or highways.

Provided, however, that any damage (other than trimming, cutting or removing trees as provided above) to the property of the Grantor, caused by the Grantee in the construction or repair of said communication system, shall be borne by the Grantee.

In Witness Whereof, the Grantor has hereunto set his or her hand and seal this 5th day of Aug, 1997.

Grantor Signatures:

X Kenneth E. Mitchell L.S.

Lowella G. Mitchell L.S.

L.S.

INSTRUMENT #970425S
RECORDED IN THE CLERK'S OFFICE OF
TAZEWELL COUNTY ON
OCTOBER 1, 1997 AT 09:08AM
JAMES E. BLEVINS, CLERK
BY Bobby L. Miller DEPUTY CLERK

THIS DOCUMENT WAS PREPARED BY Phillip Cook

Personal Acknowledgement:

In the State of Virginia, County of Tazewell, on this 5TH day of Aug, 1997, before me, the subscriber personally appeared as Kenneth AND Lowella Mitchell to me personally known and known to me to be the same person/persons described in and who executed the within instrument and duly acknowledged to me the execution of the same.

(Notary Public) Phillip Cook My commission expires 1-31-98.

BK0736PG0743

#3520

GRW 251-OVHD-AP/Rev. 2-90

Eas No. 87 R/W Map No. 3782-452
W.O. No. 235-0011 Job No. 96-1117 Prop No. 2
Line

THIS AGREEMENT, made this 14th day of JULY, 1997,
by and between KENNETH E. MITCHELL AND
LOUELLA L. MITCHELL HIS WIFE

herein called "Grantors", whether one or more persons, and APPALACHIAN POWER COMPANY, a Virginia corporation, herein called "Appalachian",
WITNESSETH:

That for and in consideration of the sum of One Dollar ($1.00), cash in hand paid to Grantors by Appalachian, the receipt whereof is hereby acknowledged, Grantors hereby grant, convey, and warrant to Appalachian, its successors, assigns, lessees and tenants, a right of way and easement for an electric power line or lines, and communication lines, in, on, along, through, over, and across the following described lands of the Grantors situated in MAIDEN SPRINGS District, County of TAZEWELL, State of — Virginia, and bounded:

On the North by ~~the lands~~ of RT. 627
On the East by the lands of MINNIE & FRED CHRISTIAN
On the South by the lands of NORFOLK SOUTHERN
On the West by the lands of JUANITA LOCKHART
This easement extends in a EASTERLY direction from
Appalachian's existing POLE numbered 451-4 to
and including new POLE numbered 451-188

TOGETHER with the right, privilege and authority to Appalachian, its successors, assigns, lessees and tenants, to construct, erect, install, place, operate, maintain, inspect, repair, renew, remove, add to the number of, and relocate at will, poles, with wires, cables, crossarms, guys, anchors, grounding systems and all other appurtenant equipment and fixtures (hereinafter called "Appalachian's Facilities"), and string wires and cables, adding thereto from time to time, across, through, or over the above referred to premises; the right to cut down, trim and/or otherwise control, and at Appalachian's option, remove from said premises, any trees, overhanging branches, buildings, or other obstructions which may endanger the safety of, or interfere with the use of, Appalachian's Facilities; and the right of ingress and egress to and over said above referred to premises, and any of the adjoining lands of the Grantors at any and all times, for the purpose of exercising and enjoying the rights herein granted, and for doing anything necessary or useful or convenient in connection therewith.

It is understood and agreed between the parties hereto, that the Grantors reserve the right to use said lands any way not inconsistent with the rights herein granted.

TO HAVE AND TO HOLD the same unto Appalachian Power Company, its successors, assigns, lessees and tenants.

THIS INSTRUMENT WAS PREPARED BY
APPALACHIAN POWER COMPANY
P. O. Box 2021, Roanoke, VA 24022

It is agreed that the foregoing is the entire contract between the parties hereto, and that this written agreement is complete in all its terms and provisions.

WITNESS the following signatures and seals.

Kenneth E. Mitchell (SEAL) _____ (SEAL)
Lou Ella L. Mitchell (SEAL) _____ (SEAL)
_____ (SEAL) _____ (SEAL)
_____ (SEAL) _____ (SEAL)
_____ (SEAL) _____ (SEAL)

STATE OF VIRGINIA)
COUNTY OF TAZEWELL) To-wit:

The foregoing instrument was acknowledged before me this 14th day of JULY, 19 97, by

KENNETH E. MITCHELL AND
(print or type exact name of each person who signed above)
LOU ELLA L. MITCHELL

Charles E. Vanhoozier
Notary Public/Commissioner

My Commission expires:
FEBRUARY 28, 2001

(For W. Va. Only)
DECLARATION OF CONSIDERATION OF VALUE

Under the penalties of fine and imprisonment as provided by law the undersigned (grantee) hereby declares the total consideration for the property transferred by this document is ($ _____).
Given under my hand this _____ day of _____, 19 _____.

APPALACHIAN POWER COMPANY

BY _____

(For W. Va. Only)
THIS INSTRUMENT PREPARED

BY _____

APPALACHIAN POWER CO.
Checked by _____
Date 8/19/97

INSTRUMENT #970520
RECORDED IN THE CLERK'S OFFICE OF
TAZEWELL COUNTY ON
AUGUST 19, 1997 AT 01:27PM
JAMES E. BLEVINS, CLERK
BY Bonny L. Miller DEPUTY CLERK

GRW 251-OVHD-AP(Page 2)/Rev. 2-93/lc